

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

Index No:  
Date Filed:

-----X  
RICHARD ALEXANDER and BRIAN  
WHITTAKER,

Plaintiff designates  
KINGS COUNTY

Plaintiff,

-against-

The basis of the venue is:  
Place where cause of action  
arose

SUMMONS

THE CITY OF NEW YORK,

The plaintiff resides at:  
Kings County, New York

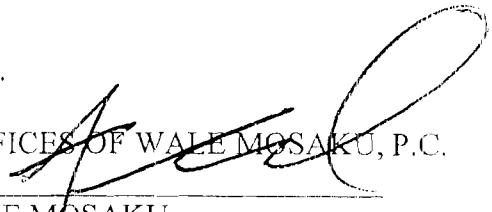
Defendant.  
-----X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York  
May 10, 2018

Yours, etc.

  
LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU  
Attorney for Plaintiff(s)  
25 Bond Street, 3<sup>rd</sup> Floor  
Brooklyn, New York 11201  
(718) 243-0994

THE CITY OF NEW YORK  
C/O New York City Corporation Counsel  
100 Church Street  
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

Index No:

-----X  
RICHARD ALEXANDER and BRIAN  
WHITTAKER,

Plaintiffs,

-against-

COMPLAINT

THE CITY OF NEW YORK,

Defendant.  
-----X

RICHARD ALEXANDER and BRIAN WHITTAKER (hereinafter "plaintiffs"), by their attorney(s) THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendant THE CITY OF NEW YORK ("City"), upon information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law that sounds in the intentional tort(s) of false arrest/imprisonment.

THE PARTIES

2. The plaintiff RICHARD ALEXANDER is a resident of the City of New York, who resides in Kings County, City and State of New York. Plaintiff RICHARD ALEXANDER is an African-American male of full age.
3. The plaintiff BRIAN WHITTAKER is a resident of the City of New York, who resides in Kings County, City and State of New York. Plaintiff BRIAN WHITTAKER is an African-American male of full age.
4. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of certain non-party police officers, through its Police Department, namely the New York City Police Department ("NYPD"), and the actions of the non-party police officers

complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

5. At the time of the incident complained of herein, each of the above-referenced non-party police officers were in the course of their duties. As such, the City is responsible for the above-referenced non-party police officers' actions, based upon the theory of *respondeat superior*.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

6. All conditions precedent to filing of this action have been complied with; on August 22, 2017, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or her representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff Richard Alexander's claim was assigned Claim No. 2017PI024126. Plaintiff Brian Whittaker's claim was assigned Claim No. 2017PI024127.
7. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.
8. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

9. On or about June 21, 2017, at approximately 06:00 a.m., within the premises described as 9427 Kings Highway, #36, Brooklyn, N.Y. 11212 ("subject premises") the plaintiffs were unlawfully and wrongfully arrested by non-party Police Officer Paul Mallilo (Tax # 949246) (hereinafter "Mallilo"), along with other presently unidentified NYPD officers.



10. That at the time of the incident, the subject premises, a one (1) room studio apartment, was rented by the plaintiff Richard Alexander's brother, namely Joseph Alexander. That neither of the plaintiffs resided at the subject premises at the time of the incident.
11. That at the time of the incident, Joseph Alexander, who was vacationing out of the country, was not present at or within the subject premises.
12. Upon information and well founded belief, at the time of the incident, Mallilo, along with other presently unidentified NYPD officers, were executing a search warrant at the subject premises, and had forcibly entered into the subject premises by breaching the front door with a "rabbit tool". Upon information and well founded belief, Joseph Alexander was the subject of the search warrant.
13. That upon entry, before Mallilo along with other presently unidentified NYPD officers had searched the subject premises, the plaintiffs were immediately placed in hand-cuffs, taken out of the subject premises, and placed in a police van.
14. That after being placed in the police van, the plaintiffs were driven around for approximately six (6) hours, at which point they were taken to the 71st police precinct. Upon arrival at the 71st precinct the plaintiffs were processed, or otherwise photographed and fingerprinted.
15. That at approximately 02:00 p.m., the plaintiffs were issued with Desk Appearance Tickets (DATs) by Mallilo, wherein each plaintiff was charged with an offense under the New York State Penal Law §220.03.
16. That the DAT mandated the plaintiffs to report to the Red Hook Community Justice Center, 88 Visitation Place, Brooklyn, New York 11231 (hereinafter "RHCJC") at 09:30 a.m. on August 18, 2017.
17. That the plaintiffs were released from custody on June 21, 2016, at approximately 02:00 p.m.

18. That the plaintiff Richard Alexander's NYPD arrest # is/was "K17641591", and the plaintiff Brian Whittaker's NYPD arrest # is/was "K17641592".
19. When the plaintiffs reported to the RHCJC on August 18, 2017 as mandated by the DATs that they were issued by Mallilo, they were informed by the clerk(s) therein that said DATs were not "*meant for*" them (i.e., the RHCJC, specifically the plaintiffs were informed that said DAT(s) was/were not logged in their system), and were thus directed to go to the Kings County Criminal Court located at 120 Schermerhorn Street, Brooklyn, New York 11201.
20. Upon reporting to the Kings County Criminal Court on August 18, 2017, the plaintiffs were informed that the Kings County District Attorney ("KCDA") had not made a decision on their matter(s), and thus, they should expect to receive a communication from the KCDA within thirty (30) days. The plaintiffs were directed to call the KCDA if they did not receive any communication within thirty days.
21. The KCDA eventually declined to prosecute the plaintiffs.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER  
NEW YORK STATE LAW

22. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 21 of this complaint as though fully set forth herein.
23. The above-described respective arrest, detention and imprisonment of each plaintiff by Mallilo and the non party police officers were without just or probable cause, and without any warrant or legal process directing or authorizing each plaintiff's arrest or subsequent detention.
24. As a result of each plaintiff's above-described false arrest and detention by Mallilo and the non party police officers, each plaintiff has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was

prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.

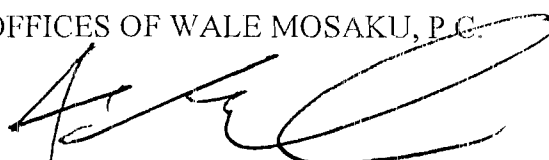
25. Mallilo and the non party police officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for their unlawful acts towards each plaintiff as described above.
26. Consequently, each plaintiff has been damaged and hereby demands compensatory damages in an amount to be proven at trial against the defendant.

WHEREFORE, each plaintiff prays for judgment against the defendant, as follows: for compensatory damages in an amount to be proven at trial; for costs and expenses of suit herein, including his reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York  
May 10, 2018

LAW OFFICES OF WALE MOSAKU, P.C.

By:



Wale Mosaku  
Attorney for the Plaintiffs  
25 Bond Street, 3<sup>rd</sup> Floor  
Brooklyn, N.Y. 11201  
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

Index No:

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RICHARD ALEXANDER and BRIAN  
WHITTAKER,

Plaintiff,

-against-

ATTORNEY  
CERTIFICATION  
PURSUANT TO 22 NYCRR  
Part 130-1.1(c)

THE CITY OF NEW YORK,

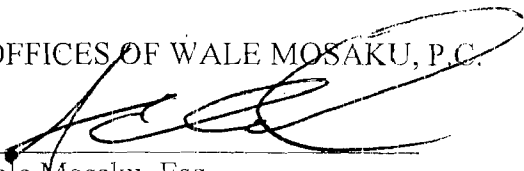
Defendant.  
-----X

The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the  
Courts of the State of New York. I do hereby provide this signed certification pursuant to  
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the  
Court in this action are not frivolous.

Dated: Brooklyn, New York  
May 10, 2018

LAW OFFICES OF WALE MOSAKU, P.C.

  
BY: Wale Mosaku, Esq.  
Attorney(s) for Plaintiffs  
25 Bond Street, 3<sup>rd</sup> Floor  
Brooklyn, New York 11201  
(718) 243-0994



SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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RICHARD ALEXANDER and BRIAN WHITTAKER,

Plaintiff,

-against-

THE CITY OF NEW YORK,

Defendant.

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.  
Attorney(s) for Plaintiff(s)  
25 Bond Street, 3<sup>rd</sup> Floor  
Brooklyn, New York 11201  
(718) 243-0994

To:

Service of a copy of the within  
is hereby admitted.

Dated:..... 200\_

Attorneys for Defendant(s)